MADRAS HIGH COURT (PRINCIPAL SEAT, CHENNAI)

APPELLATE JURISDICTION · SINGLE JUDGE

Writ Petition No. 7284 of 2021 **CNR: TNCH010072842021**

Date: 07 June, 2021 *Citation: 2021:MHC:2481*

CORAM: Hon'ble N. Anand Venkatesh, J.

Petitioner: S. Sushma & Another (Same-sex couple)

- VERSUS -

Respondent: Commissioner of Police & State of Tamil Nadu

DOMAIN: HUMAN RIGHTS & LGBTQIA+ PROTECTION **STATUS: Good Law (Binding Human Rights Precedent)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

The LGBTQIA+ community cannot be left in a vulnerable state where their fundamental rights under Article 21 are constantly threatened. Coercive action by police on missing complaints filed by parents of adult LGBTQIA+ individuals is illegal.

STATUTES APPLIED: Article 21, Article 14, Article 226

DISPOSITION: COMPREHENSIVE LGBTQIA+ PROTECTION GUIDELINES ISSUED

EXECUTIVE RATIO SUMMARY:

Pathbreaking judgment by Justice N. Anand Venkatesh issuing all-India guidelines to protect LGBTQIA+ persons from police harassment, banning conversion therapy, and mandating police and judicial sensitization.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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